ARTICLE 9

Procedure for effecting coordination with or obtaining agreement of other administrations[1, 2, 3, 4, 5, 6, 7, 8, 9] (WRC-15)

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[1] **A.9.1** For the application of the provisions of this Article with respect to stations in a space radiocommunication service using frequency bands covered by the fixed-satellite service allotment Plan, see also Appendix **30B**.

[2] **A.9.2** These procedures may be applicable to stations on board satellite launching vehicles.

[3] **A.9.3** See Appendices **30** and **30A**, as appropriate, for the coordination of:

a) proposed modifications to the Appendix **30** Plans for the broadcasting-satellite service in the frequency bands 11.7-12.2 GHz (in Region 3), 11.7-12.5 GHz (in Region 1) and 12.2-12.7 GHz (in Region 2), or new or modified assignments proposed for inclusion in the Regions 1 and 3 List of additional uses, with respect to frequency assignments in the same service or in other services to which these bands are allocated;

b) frequency assignments in other services to which the frequency bands referred to in § *a)* above are allocated in the same Region or in another Region, with respect to assignments in the broadcasting-satellite service in the frequency bands 11.7-12.2 GHz (in Region 3), 11.7-12.5 GHz (in Region 1) and 12.2-12.7 GHz (in Region 2);

c) proposed modifications to the Appendix **30A** Plans for feeder links to the broadcasting-satellite service in the frequency bands 17.3-17.8 GHz (in Region 2) and 14.5-14.8 GHz and 17.3-18.1 GHz (in Regions 1 and 3), or new or modified assignments proposed for inclusion in the Regions 1 and 3 Lists of additional uses, with respect to frequency assignments in the same service or in other services to which these bands are allocated;

d) frequency assignments in other services to which the frequency bands referred to in § *c)* above are allocated in the same Region or in another Region, with respect to assignments in the fixed-satellite service (Earth-to-space) in the frequency bands 17.3-17.8 GHz (in Region 2) and 14.5-14.8 GHz and 17.3-18.1 GHz (in Regions 1 and 3).

For the broadcasting-satellite service and for feeder links for the broadcasting-satellite service in the fixed-satellite service in Region 2, Resolution **42 (Rev.Orb-88)*** is also applicable. (WRC-2000)

* *Note by the Secretariat:* This Resolution was revised by WRC-03, WRC-12 and WRC-15.

[4] **A.9.4** Resolution **49 (Rev.WRC-15)** or Resolution **552 (Rev.WRC-15)**, as appropriate, shall also be applied with respect to those satellite networks and satellite systems that are subject to it. (WRC-15)

[5] **A.9.5** See also Resolution **51 (Rev.WRC-2000)****. (WRC-2000)

** *Note by the Secretariat:* This Resolution was abrogated by WRC-15.

[6] **A.9.6** The provisions of Appendices **30**, **30A** and **30B** do not apply to non-geostationary service-satellite systems in the fixed-satellite. (WRC-2000)

[7] **A.9.6A** For the purpose of this Article, a geostationary satellite is a geosynchronous satellite with an orbit the inclination of which is less than or equal to 15°. (WRC-03)

[8] **A.9.7** See also Resolution **33 (Rev.WRC-03)*****. (WRC-03)

*** *Note by the Secretariat:* This Resolution was revised by WRC-15.

[9] **A.9.8** In respect of submission for Regions 1 and 3 satellite networks in the broadcasting-satellite service in the frequency band 21.4-22 GHz meeting special requirements, Resolution **553 (WRC-12)****** applies. (WRC-12)

**** *Note by the Secretariat:* This Resolution was revised by WRC-15.

Section I − Advance publication of information on satellite networks or satellite systems

General

9.1 Before initiating any action under Article **11** in respect of frequency assignments for a satellite network or a satellite system not subject to the coordination procedure described in Section II of Article **9** below, an administration, or one[10] acting on behalf of a group of named administrations, shall send to the Bureau a general description of the network or system for advance publication in the International Frequency Information Circular (BR IFIC) not earlier than seven years and preferably not later than two years before the planned date of bringing into use of the network or system (see also No. **11.44**). The characteristics to be provided for this purpose are listed in Appendix **4**. The notification information may also be communicated to the Bureau at the same time, but shall be considered as having been received by the Bureau not earlier than six months after the date of publication of the advance publication information. (WRC-15)

9.1A Upon receipt of the complete information sent under No. **9.30**, the Bureau shall publish, using the basic characteristics of the coordination request, a general description of the network or system for advance publication in a Special Section of the BR IFIC. The characteristics to be published for this purpose are listed in Appendix **4**. (WRC-15)

9.2 Amendments to the information sent in accordance with the provisions of No. **9.1** shall also be sent to the Bureau as soon as they become available. The use of an additional frequency band, or modification of the orbital location for a space station using the geostationary-satellite orbit, the modification of the reference body or the modification of the direction of transmission for a space station using a non-geostationary-satellite orbit, as well as the use of inter-satellite links of a geostationary space station communicating with a non-geostationary space station which are not subject to the coordination procedure under Section II of Article **9**, will require the application of the advance publication procedure. (WRC-15)

9.2A If the information is found to be incomplete, the Bureau shall immediately seek from the administration concerned any clarification required and information not provided.

9.2B On receipt of the complete information sent under Nos. **9.1** and **9.2**, the Bureau shall publish[11] it in a Special Section of its BR IFIC within three months. When the Bureau is not in a position to comply with the time limit referred to above, it shall periodically so inform the administrations, giving the reasons therefor. (WRC-2000)

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[10] **9.1.1** Whenever, under this provision, an administration acts on behalf of a group of named administrations, all members of that group retain the right to respond in respect of their own networks or systems.

[11] **9.2B.1** If the payments are not received in accordance with the provisions of Council Decision 482, as amended, on the implementation of cost recovery for satellite network filings, the Bureau shall cancel the publication, after informing the administration concerned. The Bureau shall inform all administrations of such action, and that the network specified in the publication in question no longer has to be taken into consideration by the Bureau and other administrations. The Bureau shall send a reminder to the notifying administration not later than two months prior to the deadline for the payment in accordance with the above-mentioned Council Decision 482 unless the payment has already been received. (WRC-07)

9.2C Modifications to coordination information that include the use of an additional frequency band or modification of the orbital location for a space station using the geostationary-satellite orbit will require application of the procedure in No. **9.1A**. (WRC-15)

Sub-Section IA − Advance publication of information on satellite networks or satellite systems that are not subject to coordination procedure under Section II

9.3 If, upon receipt of the BR IFIC containing information published under No. **9.2B**, any administration believes that interference which may be unacceptable may be caused to its existing or planned satellite networks or systems, it shall within four months of the date of publication of the BR IFIC communicate to the publishing administration its comments on the particulars of the anticipated interference to its existing or planned systems. A copy of these comments shall also be sent to the Bureau. Thereafter, both administrations shall endeavour to cooperate in joint efforts to resolve any difficulties, with the assistance of the Bureau, if so requested by either of the parties, and shall exchange any additional relevant information that may be available. If no such comments are received from an administration within the aforementioned period, it may be assumed that the administration concerned has no objections to the planned satellite network(s) of the system on which details have been published.

9.4 In the case of difficulties, the administration responsible for the planned satellite network shall explore all possible means to resolve the difficulties without considering the possibility of adjustment to networks of other administrations. If no such means can be found, it may request the other administrations to explore all possible means to meet its requirements. The administrations concerned shall make every possible effort to resolve the difficulties by means of mutually acceptable adjustments to their networks. An administration on behalf of which details of planned satellite networks have been published in accordance with the provisions of No. **9.2B** shall, after the period of four months, inform the Bureau of the progress made in resolving any difficulties. If necessary, a further report shall be provided prior to the submission of notices to the Bureau under Article **11**.

9.5 The Bureau shall inform all administrations of the list of administrations which have sent comments under No. **9.3** and provide a summary of the comments received.

9.5A The procedure of Sub-Section IA shall be considered mainly for the purposes of informing all administrations of developments in the use of space radiocommunications.

Sub-Section IB (SUP - WRC-15)

9.5B (SUP - WRC-15)

9.5C (SUP - WRC-15)

9.5D (SUP - WRC-15)

9.5B.1 (SUP - WRC-15)

Section II − Procedure for effecting coordination[12, 13]

Sub-Section IIA − Requirement and request for coordination

9.6 Before an administration[14, 15, 16] notifies to the Bureau or brings into use a frequency assignment in any of the cases listed below, it shall effect coordination, as required, with other administrations identified under No. **9.27**: (WRC-03)

9.7 *a)* for a station in a satellite network using the geostationary-satellite orbit, in any space radiocommunication service, in a frequency band and in a Region where this service is not subject to a plan, in respect of any other satellite network using that orbit, in any space radiocommunication service in a frequency band and in a Region where this service is not subject to a plan, with the exception of coordination between earth stations operating in the opposite direction of transmission.

9.7A *b)*[17, 18] for a specific earth station in a geostationary-satellite network in the fixed-satellite service in certain frequency bands, in respect of a non-geostationary-satellite system in the fixed-satellite service; (WRC-2000)

9.7B *c)*[17, 18] for a non-geostationary-satellite system in the fixed-satellite service in certain frequency bands, in respect of a specific earth station in a geostationary-satellite network in the fixed-satellite service. (WRC-2000)

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[12] **A.9.II.1** These procedures are also applicable for earth stations of the Earth exploration-satellite, space research, space operation and radiodetermination-satellite services intended to be used while in motion or during halts at unspecified points.

[13] **A.9.II.2** The word "coordination" as used throughout this Article refers also to the process of seeking an agreement of other administrations when required under No. **9.21**.

[14] **9.6.1** In the case of coordination of an assignment in a satellite network, an administration may act on behalf of a group of named administrations. Whenever, under this provision, an administration acts on behalf of a group of named administrations, all members of the group retain the right to respond in respect of their own services which could affect or be affected by the proposed assignment.

[15] **9.6.2** In all cases, the coordination of an earth station with terrestrial stations or other earth stations operating in the opposite direction of transmission shall remain within the authority of the administration on the territory of which this station is located.

[16] **9.6.3** Unless otherwise specified, coordination under any of the particular sharing situations defined in Nos. **9.7** to **9.21** is not applicable when limits for that sharing situation are specified elsewhere in these Regulations. (WRC-03)

[17] **9.7A.1** and **9.7B.1** The coordination of a specific earth station under Nos. **9.7A** or **9.7B** shall remain within the authority of the administration on whose territory the station is located. (WRC-2000)

[18] **9.7A.2** and **9.7B.2** Coordination information relating to a specific earth station received by the Bureau prior to 30 June 2000 is considered as complete information under Nos. **9.7A** or **9.7B** from the date of receipt of complete information for the associated satellite network under No. **9.7**, provided that the maximum isotropic antenna gain, the lowest total receiving system noise temperature of the earth station and the necessary bandwidth of the emission received by the earth station are equal to those of any typical earth station included in the coordination request for the geostationary-satellite network in the fixed-satellite service. (WRC-2000)

9.8 (SUP - WRC-2000)

9.9 (SUP - WRC-2000)

9.10 Not used;

9.11 *d)* for a space station in the broadcasting-satellite service in any band shared on an equal primary basis with terrestrial services and where the broadcasting-satellite service is not subject to a plan, in respect of terrestrial services;

9.11A *e)* for a station for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to this provision, the provisions of Nos. **9.12** to **9.16** are applicable; (WRC-2000)

9.12 *f)* for a station in a satellite network using a non-geostationary-satellite orbit, for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to this provision or to No. **9.11A**, in respect of any other satellite network using a non-geostationary-satellite orbit, with the exception of coordination between earth stations operating in the opposite direction of transmission; (WRC-2000)

9.12A *g)* for a station in a satellite network using a non-geostationary-satellite orbit, for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to this provision or to No. **9.11A**, in respect of any other satellite network using the geostationary-satellite orbit, with the exception of coordination between earth stations operating in the opposite direction of transmission; (WRC-2000)

9.13 *h)* for a station in a satellite network using the geostationary-satellite orbit, for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to this provision or to No. **9.11A**, in respect of any other satellite network using a non-geostationary-satellite orbit, with the exception of coordination between earth stations operating in the opposite direction of transmission; (WRC-2000)

9.14 *i)* for a transmitting space station of a satellite network for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to this provision or to No. **9.11A** in respect of receiving stations of terrestrial services where the threshold value is exceeded; (WRC-07)

9.15 *j)* for either a specific earth station or typical earth station of a non-geostationary satellite network for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to No. **9.11A**, in respect of terrestrial stations in frequency bands allocated with equal rights to space and terrestrial services and where the coordination area of the earth station includes the territory of another country; (WRC-2000)

9.16 *k)* for a transmitting station of a terrestrial service for which the requirement to coordinate is included in a footnote to the Table of Frequency Allocations referring to No. **9.11A** and which is located within the coordination area of an earth station in a non-geostationary-satellite network; (WRC-2000)

9.17 *l)* for any specific earth station or typical mobile earth station in frequency bands above 100 MHz allocated with equal rights to space and terrestrial services, in respect of terrestrial stations, where the coordination area of the earth station includes the territory of another country, with the exception of the coordination under No. **9.15**; (WRC-2000)

9.17A *m)* for any specific earth station, in respect of other earth stations operating in the opposite direction of transmission or for any typical mobile earth station in respect of specific earth stations operating in the opposite direction of transmission, in frequency bands allocated with equal rights to space radiocommunication services in both directions of transmission and where the coordination area of the earth station includes the territory of another country or the earth station is located within the coordination area of another earth station, with the exception of the coordination under No. **9.19**; (WRC-03)

9.18 *n)* for any transmitting station of a terrestrial service in the bands referred to in No. **9.17** within the coordination area of an earth station, in respect of this earth station, with the exception of the coordination under Nos. **9.16** and **9.19**; (WRC-2000)

9.19 *o)* for any transmitting station of a terrestrial service or any transmitting earth station in the fixed-satellite service (Earth-to-space) in a frequency band shared on an equal primary basis with the broadcasting-satellite service, with respect to typical earth stations included in the service area of a space station in the broadcasting-satellite service. (WRC-2000)

9.20 Not used;

9.21 *p)* for any station of a service for which the requirement to seek the agreement of other administrations is included in a footnote to the Table of Frequency Allocations referring to this provision. (WRC-2000)

9.22 Not used.

9.23 Whenever there is a requirement to effect more than one form of coordination in accordance with No. **9.30**, the requests shall be appropriately identified by reference to Nos. **9.7** to **9.14** and **9.21**, and they shall as far as possible be sent to the Bureau and, where appropriate, shall be published simultaneously.

9.24 and 9.25 Not used.

9.26 Coordination may be effected for a satellite network using the information relating to the space station, including its service area, and the parameters of one or more typical earth stations located in all or part of the service area of the space station. Coordination may also be effected for terrestrial stations using the information relating to typical terrestrial stations, except for those mentioned in Nos. **11.18** to **11.23**.

9.27 Frequency assignments to be taken into account in effecting coordination are identified using Appendix **5**.

9.28 In the case of requests for coordination under No. **9.29**, the requesting administration shall, by applying the calculation method and criteria contained in Appendix **5** to those frequency assignments, identify, to the extent possible, the administrations with which coordination is to be effected.

9.29 Requests for coordination made under Nos. **9.15** to **9.19** shall be sent by the requesting administration to the identified administrations, together with the appropriate information listed in Appendix **4** to these Regulations.

9.30 Requests for coordination made under Nos. **9.7** to **9.14** and **9.21** shall be sent by the requesting administration to the Bureau, together with the appropriate information listed in Appendix **4** to these Regulations.

9.31 The information sent under No. **9.29** shall also, in the cases covered by Nos. **9.15**, **9.17** or **9.17A**, include a copy of diagrams drawn to appropriate scale indicating, for both transmission and reception, the location of the earth station and its associated coordination area, or the coordination area related to the service area in which it is intended to operate the mobile earth station, and the data on which the diagrams are based. In respect of terrestrial stations, in the cases covered by Nos. **9.16**, **9.18** and **9.19** the information shall include the locations of terrestrial stations within the coordination area of the relevant earth station.

9.32 If the responsible administration concludes that coordination is not required under Nos. **9.7** to **9.7B**, it shall send the relevant information pursuant to Appendix **4** to the Bureau for action under No. **9.34**. (WRC-2000)

9.32A If the responsible administration, following the application of Nos. **9.15** to **9.19**, concludes that coordination is not required, it may send the relevant information pursuant to Appendix **4** to the Bureau for action under Section I of Article **11**.

9.33 If for any reason an administration cannot act in accordance with No. **9.29**, it shall seek the assistance of the Bureau. The Bureau shall then send the request for coordination to the administration concerned and take any necessary further action as appropriate under Nos. **9.45** and **9.46**.

9.34 On receipt of the complete information sent under No. **9.30** or No. **9.32** the Bureau shall promptly:

9.35 *a)* examine that information with respect to its conformity with No. **11.31**[19]; (WRC-2000)

9.36 *b)* identify in accordance with No. **9.27** any administration with which coordination may need to be effected[20, 21]; (WRC-12)

9.37 *c)* include their names in the publication under No. **9.38**;

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[19] **9.35.1** The Bureau shall include the detailed results of its examination under No. **11.31** of compliance with the limits in Tables **22-1** to **22-3** of Article **22** in the publication under No. **9.38**. (WRC-2000)

[20] **9.36.1** The list of administrations identified by the Bureau under Nos. **9.11** to **9.14** and **9.21** is only for information purposes, to help administrations comply with this procedure.

[21] **9.36.2** In the case of coordination under Nos. **9.7**, **9.7A** and **9.7B**, the Bureau shall also identify the specific satellite networks or earth stations with which coordination needs to be effected (see also No. **9.42**). (WRC-12)

9.38 *d)* publish[22], as appropriate, the complete information in the BR IFIC within four months. Where the Bureau is not in a position to comply with the time-limit referred to above, it shall periodically so inform the administrations, giving the reasons therefor. (WRC-2000)

9.39 Not used;

9.40 *e)* inform the administrations concerned of its actions and communicate the results of its calculations, drawing attention to the relevant BR IFIC.

9.40A If the information is found to be incomplete, the Bureau shall immediately seek from the administration concerned any clarification required and information not provided.

9.41 Following receipt of the BR IFIC referring to requests for coordination under Nos. **9.7** to **9.7B**, an administration believing that it, or any of its satellite networks not identified under No. **9.36.2**, should have been included in the request, or the initiating administration believing that an administration, or any of the satellite networks identified under No. **9.36.2,** in accordance with the provisions of No. **9.7** (GSO/GSO) (items 1) to 8) of the frequency band column), No. **9.7A** (GSO earth station/non-GSO system) or No. **9.7B** (non-GSO system/GSO earth station) of Table 5-1 of Appendix **5** should not have been included in the request, shall, within four months of the date of publication of the relevant BR IFIC, inform the initiating administration or the identified administration, as appropriate, and the Bureau, giving its technical reasons for doing so, and shall request that its name, or the name of any of its satellite networks not identified under No. **9.36.2**, be included, or that the name of the identified administration, or any of its satellite networks identified under No. **9.36.2**, be excluded, as appropriate. (WRC-12)

9.42 The Bureau shall study this information on the basis of Appendix **5** and shall inform both administrations of its conclusions. Should the Bureau agree to include or exclude, as appropriate, an administration and/or a satellite network in the request, it shall publish a Special Section, indicating the list of administrations and associated satellite networks with which coordination needs to be effected[23]. (WRC-12)

9.43 Those administrations not responding under No. **9.41** within the time limit specified therein shall be regarded as unaffected and the provisions of Nos. **9.48** and **9.49** shall apply.

9.44 The administration requesting coordination and those with which it is requested, or the Bureau when acting pursuant to No. **7.6**, may request any additional information they consider necessary.

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[22] **9.38.1** If the payments are not received in accordance with the provisions of Council Decision 482, as amended, on the implementation of cost recovery for satellite network filings, the Bureau shall cancel the publication, after informing the administration concerned. The Bureau shall inform all administrations of such action and that the network specified in the publication in question no longer has to be taken into consideration by the Bureau and other administrations. The Bureau shall send a reminder to the notifying administration not later than two months prior to the deadline for the payment in accordance with the above-mentioned Council Decision 482 unless the payment has already been received. (WRC-07)

[23] **9.42.1** During coordination discussions between administrations, additional networks can be included in the coordination process on the basis of the agreement of the administrations concerned. (WRC-12)

Sub-Section IIB − Acknowledgement of receipt of a request for coordination

9.45 An administration receiving a request for coordination under No. **9.29** shall, within 30 days from the date of the request, acknowledge receipt by telegram to the requesting administration. In the absence of an acknowledgement of receipt of its request within the 30 days, the requesting administration shall send a telegram requesting an acknowledgement.

9.46 If there is no acknowledgement of receipt within 15 days of its second request sent under No. **9.45**, the requesting administration may seek the assistance of the Bureau. In this event, the Bureau shall forthwith send a telegram to the administration which has failed to reply requesting an immediate acknowledgement.

9.47 If there is no acknowledgement of receipt within 30 days after the Bureau's action under No. **9.46**, the Bureau shall immediately send a reminder providing an additional 15-day period for the response. In the absence of such an acknowledgement within 15 days, it shall be deemed that the administration which has failed to acknowledge receipt has undertaken: (WRC-15)

9.48 *a)* that no complaint will be made in respect of any harmful interference affecting its own assignments which may be caused by the assignment for which coordination was requested; and

9.49 *b)* that the use of its own assignments will not cause harmful interference to the assignment for which coordination was requested.

Sub-Section IIC − Action upon a request for coordination

9.50 An administration having received a request for coordination under Nos. **9.7** to **9.21**, or having been included in the procedure following action under No. **9.41**, shall promptly examine the matter with regard to interference which may be caused to or, in certain cases, by its own assignments[24], identified in accordance with Appendix **5**[25, 26]. (WRC-15)

9.51 Following its action under No. **9.50**, the administration with which coordination was sought under Nos. **9.7** to **9.7B** shall, within four months of the date of publication of the BR IFIC under No. **9.38**, either inform the requesting administration and the Bureau of its agreement or act under No. **9.52**. (WRC-2000)

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[24] **9.50.1** In the absence of specific provisions in these Regulations relating to the evaluation of interference, the calculation methods and the criteria should be based on relevant ITU-R Recommendations agreed by the administrations concerned. In the event of disagreement on a Recommendation or in the absence of such a Recommendation, the methods and criteria shall be agreed between the administrations concerned. Such agreements shall be concluded without prejudice to other administrations.

[25] **9.50.2** Where Appendix **5** specifies a period for which planned assignments may be taken into account, that period may be extended by agreement between the administrations concerned.

[26] **9.50.3** See also No. **9.52.1**. (WRC-15)

9.51A Following its action under No. **9.50**, the administration with which coordination was sought under Nos. **9.15** to **9.19** shall, within four months of the date of dispatch of the coordination data under No. **9.29**, either inform the requesting administration of its agreement or act under No. **9.52**.

9.52 If an administration, following its action under No. **9.50**, does not agree to the request for coordination, it shall, within four months of the date of publication of the BR IFIC under No. **9.38**, or of the date of dispatch of the coordination data under No. **9.29**, inform the requesting administration of its disagreement[27] and shall provide information concerning its own assignments upon which that disagreement is based. It shall also make such suggestions as it is able to offer with a view to satisfactory resolution of the matter. A copy of that information shall be sent to the Bureau. Where the information relates to terrestrial stations or earth stations operating in the opposite direction of transmission within the coordination area of an earth station, only that information relating to existing radiocommunication stations or to those to be brought into use within the next three months for terrestrial stations, or three years for earth stations, shall be treated as notifications under Nos. **11.2** or **11.9**. (WRC-15)

9.52A In the case of coordination requested under No. **9.14**, on receipt of the Special Section of the BR IFIC referred to in No. **9.38**, and within the same four-month period from the publication of that Special Section, an administration in need of assistance may inform the Bureau that it has existing or planned terrestrial stations which might be affected by the planned satellite network, and may request the Bureau to determine the need for coordination by applying the Appendix **5** criteria. The Bureau shall inform the administration seeking coordination of this request, indicating the date by which it may be able to provide the results of its analysis. When these results are available, the Bureau shall inform both administrations. This request shall be considered as a disagreement, pending the results of the analysis by the Bureau of the need for coordination.

9.52B When an agreement on coordination is reached, the administration responsible for the terrestrial stations or the earth station operating in the opposite direction of transmission may send to the Bureau the information concerning those stations covered by the agreement which are intended to be notified under Nos. **11.2** or **11.9**. The Bureau shall consider as notifications only that information relating to existing terrestrial or earth stations operating in the opposite direction of transmission or to those to be brought into use within the next three years.

9.52C For coordination requests under Nos. **9.11** to **9.14** and **9.21**, an administration not responding under No. **9.52** within the same four-month period shall be regarded as unaffected and, in the cases of Nos. **9.11** to **9.14**, the provisions of Nos. **9.48** and **9.49** shall apply.

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[27] **9.52.1** An administration believing that unacceptable interference may be caused to its existing or planned satellite networks or systems not subject to the coordination procedure under Section II of Article **9** may send its comments to the requesting administration. A copy of these comments may also be sent to the Bureau. Such comments shall however not by themselves constitute a disagreement under No. **9.52**. Thereafter, both administrations shall endeavour to cooperate in joint efforts to resolve any difficulties, with the assistance of the Bureau, if so requested by either of the parties, and shall exchange any additional relevant information that may be available. (WRC-15)

9.52D For coordination requests under Nos. **9.12** to **9.14**, forty-five days prior to the expiry of the same four-month period the Bureau shall dispatch a circular-telegram to all administrations, bringing the matter to their attention. Upon receipt of the aforementioned circular-telegram, an administration shall acknowledge receipt immediately by telegram. If no acknowledgement is received within thirty days, the Bureau shall dispatch a telegram requesting acknowledgement, to which the receiving administration shall reply within a further period of fifteen days.

9.53 Thereafter, the requesting and responding administrations shall make every possible mutual effort to overcome the difficulties, in a manner acceptable to the parties concerned.

9.53A Upon expiry of the deadline for comments in respect of a coordination request under Nos. **9.11** to **9.14** and **9.21**, the Bureau shall, according to its records, publish a Special Section, indicating the list of administrations having submitted their disagreement or other comments within the regulatory deadline. (WRC-2000)

9.54 Either the administration seeking coordination or one whose assignments may be affected thereby may request additional information which it may require in order to assess the interference to its own assignments or to assist in resolving the matter.

9.55 All administrations may use correspondence, any appropriate means of telecommunication or meetings, as necessary, to assist in resolving the matter. The results thereof shall be communicated to the Bureau, which shall publish them in the BR IFIC, as appropriate.

9.56 and 9.57 Not used.

9.58 An administration which has initiated coordination, as well as any administration with which coordination is sought, shall communicate to the Bureau any modifications to the published characteristics of their respective networks that were required to reach agreement on the coordination. The Bureau shall publish this information in accordance with No. **9.38**, indicating that these modifications resulted from the joint effort of the administrations concerned to reach agreement on coordination and that, for this reason, they should be given special consideration. These modifications may involve the application of Sub-Section IIA of Article **9** with respect to other administrations.

9.59 If there is disagreement between the administration seeking coordination and an administration with which coordination is sought concerning the level of acceptable interference, either may seek the assistance of the Bureau; in such a case, it shall provide the necessary information to enable the Bureau to endeavour to effect such coordination.

Sub-Section IID − Action in the event of no reply, no decision or disagreement on a request for coordination

9.60 If, within the same four-month period specified in Nos. **9.51** or **9.51A**, an administration with which coordination is sought under Nos. **9.7** to **9.7B** and **9.15** to **9.19** fails to reply or to give a decision under Nos. **9.51** or **9.51A** or, following its disagreement under No. **9.52**, fails to provide information concerning its own assignments on which its disagreement is based, the requesting administration may seek the assistance of the Bureau. (WRC-2000)

9.61 The Bureau, acting on a request for assistance under No. **9.60**, shall forthwith request the administration concerned to give an early decision in the matter or provide the relevant information.

9.62 If the administration concerned fails to respond within 30 days of the Bureau's action under No. **9.61**, the Bureau shall immediately send a reminder providing an additional 15-day period for the response. If the administration still fails to respond after the Bureau's reminder within the 15 days, the provisions of Nos. **9.48** and **9.49** shall apply. (WRC-15)

9.63 If there is continuing disagreement, or if any administration involved in the matter has requested the assistance of the Bureau, the Bureau shall seek any necessary information to enable it to assess the interference. It shall communicate its conclusions to the administrations involved.

9.64 If the disagreement remains unresolved after the Bureau has communicated its conclusions to the administrations involved, the administration which requested coordination shall, having regard to the other provisions of this Section, defer the submission of its notice of frequency assignments under Article **11** to the Bureau for six months from the date of the request or the BR IFIC containing the request for coordination, as appropriate.

9.65 If, at the date of receipt of a notice under No. **9.64** above, the Bureau has been informed of a continuing disagreement, the Bureau shall examine the notice under Nos. **11.32A** or **11.33**[28] and shall act in accordance with No. **11.38**.

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[28] **9.65.1** A notice of a frequency assignment for which coordination was requested under No. **9.21** and in respect of which there is continuing disagreement shall not be examined under Nos. **11.32A** or **11.33**; it shall, however, be examined under No. **11.31**.

ARTICLE 11

Notification and recording of frequency assignments[1, 2, 3, 4, 5, 6, 7, 8] (WRC-15)

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[1] **A.11.1** See also Appendices **30** and **30A** as appropriate, for the notification and recording of:

a) frequency assignments to stations in the broadcasting-satellite service in the frequency bands 11.7-12.2 GHz (in Region 3), 11.7-12.5 GHz (in Region 1) and 12.2-12.7 GHz (in Region 2);

b) frequency assignments to stations in other services to which the frequency bands referred to in § *a)* above are allocated in the same Region or in another Region, so far as their relationship to the broadcasting-satellite service is concerned, in the frequency bands 11.7-12.2 GHz (in Region 3), 11.7-12.5 GHz (in Region 1) and 12.2-12.7 GHz (in Region 2);

c) frequency assignments to feeder-link stations in the fixed-satellite service (Earth-to-space) in the frequency bands 14.5-14.8 GHz in Region 1 (see No. 5.510) and in Region 3, 17.3-18.1 GHz in Regions 1 and 3 and 17.3-17.8 GHz in Region 2, and to stations in other services in these bands;

d) frequency assignments to stations in the same service or other services to which the frequency bands referred to in § c) above are allocated in the same Region or in another Region, so far as their relationship to the fixed-satellite service (Earth-to-space) in these bands is concerned.

For the broadcasting-satellite service in Region 2 and for feeder links in the fixed-satellite service for the broadcasting-satellite service in Region 2, Resolution **42 (Rev.Orb-88)*** is also applicable.

See also Appendix **30B** for the notification and recording of assignments in the following frequency bands:

All Regions, fixed-satellite service only

4 500-4 800 MHz	(space-to-Earth)
6 725-7 025 MHz	(Earth-to-space)
10.7-10.95 GHz	(space-to-Earth)
11.2-11.45 GHz	(space-to-Earth)
12.75-13.25 GHz	(Earth-to-space)

(WRC-2000)

* *Note by the Secretariat:* This Resolution was revised by WRC-03, WRC-12 and WRC-15.

[2] **A.11.2** Resolution **49 (Rev.WRC-15)** or Resolution **552 (Rev.WRC-15)**, as appropriate, shall also be applied with respect to those satellite networks and satellite systems that are subject to it. (WRC-15)

[3] **A.11.3** See also Resolution **51 (Rev.WRC-2000)****. (WRC-2000)

** *Note by the Secretariat:* This Resolution was abrogated by WRC-15.

[4] **A.11.4** The provisions of Appendices **30**, **30A** and **30B** do not apply to non-geostationary-satellite systems in the fixed-satellite service. (WRC-2000)

[5] **A.11.4A** For the purpose of this Article, a geostationary satellite is a geosynchronous satellite with an orbit the inclination of which is less than or equal to 15°. (WRC-03)

[6] **A.11.5** See also Resolution **33 (Rev.WRC-03)*****. (WRC-03)

*** *Note by the Secretariat:* This Resolution was revised by WRC-15.

[7] **A.11.6** If the payments are not received in accordance with the provisions of Council Decision 482, as amended, on the implementation of cost recovery for satellite network filings, the Bureau shall cancel the publication specified in Nos. 11.28 and 11.43 and the corresponding entries in the Master Register under Nos. 11.36, 11.37, 11.38, 11.39, 11.41, 11.43B or 11.43C, as appropriate, after informing the administration concerned. The Bureau shall inform all administrations of such action and that the entries specified in the publication in question no longer have to be taken into consideration by the Bureau and other administrations and that any resubmitted notice shall be considered to be a new notice. The Bureau shall send a reminder to the notifying administration not later than two months prior to the deadline for the payment in accordance with the above-mentioned Council Decision 482 unless the payment has already been received. See also Resolution **905 (WRC-07)******. (WRC-07)

**** *Note by the Secretariat:* This Resolution was abrogated by WRC-12.

[8] **A.11.7** In respect of submissions for Regions 1 and 3 satellite networks in the broadcasting-satellite service in the frequency band 21.4-22 GHz meeting special requirements, Resolution **554 (WRC-12)** applies. (WRC-12)

Section I − Notification

11.1 The expression "frequency assignment", wherever it appears in this Article, shall be understood to refer either to a new frequency assignment or to a change in an assignment already recorded in the Master International Frequency Register (hereinafter called the *Master Register*).

11.2 Any frequency assignment to a transmitting station and to its associated receiving stations except for those mentioned in Nos. **11.13** and **11.14** shall be notified to the Bureau:

11.3 *a)* if the use of that assignment is capable of causing harmful interference to any service of another administration; or

11.3A (SUP - WRC-07)

11.4 *b)* if that assignment is to be used for international radiocommunication; or

11.5 *c)* if that assignment is subject to a world or regional frequency allotment or assignment plan which does not have its own notification procedure; or

11.6 *d)* if that assignment is subject to the coordination procedure of Article **9** or is involved in such a case; or

11.7 *e)* if it is desired to obtain international recognition for that assignment; or

11.8 *f)* if it is a non-conforming assignment under No. **8.4** and if the administration wishes to have it recorded for information.

11.9 Similar notification shall be made for a frequency assignment to a receiving earth station or space station, or to a receiving high altitude platform station in the fixed service using the bands mentioned in Nos. **5.543A** and **5.552A** or to a land station for reception from mobile stations, when: (WRC-07)

11.10 *a)* any of the conditions in Nos. **11.4**, **11.5** or **11.7** apply to the receiving station; or

11.11 *b)* any of the conditions in No. **11.2** apply to the associated transmitting station.

11.12 Any frequency to be used for reception by a particular radio astronomy station may be notified if it is desired that such data be included in the Master Register.

11.13 Assignments involving specific frequencies which are prescribed by these Regulations for common use by terrestrial stations of a given service shall not be notified. They shall be entered in the Master Register and a consolidated table shall also be published in the Preface to the International Frequency List (IFL).

11.14 Frequency assignments to ship stations and to mobile stations of other services, to stations in the amateur service, to earth stations in the amateur-satellite service, and those to broadcasting stations in the high-frequency bands allocated to the broadcasting service between 5 900 kHz and 26 100 kHz which are subject to Article **12** shall not be notified under this Article.

11.15 When notifying a frequency assignment, the administration[9] shall provide the relevant characteristics listed in Appendix **4**. (WRC-07)

11.16 Not used.

11.17 Frequency assignments relating to a number of stations or earth stations may be notified in the form of the characteristics of a typical station or a typical earth station and the intended geographical area of operation. Except for mobile earth stations, individual notices of frequency assignments are however necessary in the following cases (see also No. **11.14**):

11.18 *a)* stations covered by the Allotment Plans in Appendices **25**, **26** and **27**;

11.19 *b)* broadcasting stations;

11.20 *c)* terrestrial stations within the coordination area of an earth station;[10]

11.21 *d)* any terrestrial stations in bands shared with space services which exceed the limits specified in Tables 8a, 8b, 8c and 8d of Appendix **7** and in No. **21.3**;[10]

11.21A *e)* any terrestrial stations in bands listed in Table **21-2**;[10]

11.21B *f)* any terrestrial station in bands referred to in a footnote which includes a reference to No. **9.21**, if it pertains to a service which is subject to the application of the procedure for seeking agreement under No. **9.21**; (WRC-03)

11.22 *g)* earth stations whose coordination area includes the territory of another administration, or where the earth station is located within the coordination area of an earth station operating in the opposite direction of transmission;[10, 11] (WRC-03)

11.23 *h)* earth stations whose interference potential is greater than that of a coordinated typical earth station.[10] (WRC-03)

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[9] **11.15.1** A frequency assignment to a space station or typical earth station as part of the satellite network may be notified by one administration acting on behalf of a group of named administrations. Any further notice (modification or deletion) relating to such an assignment shall, in the absence of information to the contrary, be regarded as having been submitted on behalf of the entire group.

[10] **11.20.1**, **11.21.1**, **11.21A.1**, **11.22.1** and **11.23.1** In such cases, individual notices of frequency assignments are required for frequency bands allocated with equal rights to terrestrial and space services where coordination is required under Appendix **5**, Table **5-1**.

[11] **11.22.2** In such cases, individual notices of frequency assignments are required for frequency bands allocated with equal rights to space services, in the opposite direction of transmission, where coordination is required under Appendix **5**, Table **5-1**.

11.24 Notices relating to assignments to stations of terrestrial services, except for those referred to in Nos. **11.25**, **11.26** or **11.26A**, shall reach the Bureau not earlier than three months before the assignments are brought into use. (WRC-03)

11.25 Notices relating to assignments to stations in space services, and to terrestrial stations involved in coordination with a satellite network, shall reach the Bureau not earlier than three years before the assignments are brought into use.

11.26 Notices relating to assignments for high-altitude platform stations in the fixed service in the bands identified in Nos. **5.457, 5.537A**, **5.543A, and 5.552A** shall reach the Bureau not earlier than five years before the assignments are brought into use. (WRC-12)

11.26A Notices relating to assignments for high altitude platform stations operating as base stations to provide IMT in the bands identified in **5.388A** shall reach the Bureau not earlier than three years before the assignments are brought into use. (WRC-03)

Section II − Examination of notices and recording of frequency assignments in the Master Register

11.27 Notices not containing those characteristics specified in Appendix **4** as mandatory or required shall be returned with comments to help the notifying administration to complete and resubmit them, unless the information not provided is immediately forthcoming in response to an inquiry by the Bureau.

11.28 Complete notices shall be marked by the Bureau with their date of receipt and shall be examined in the date order of their receipt. On receipt of a complete notice the Bureau shall, within no more than two months, publish its contents, with any diagrams and maps and the date of receipt, in the BR IFIC which shall constitute the acknowledgement to the notifying administration of receipt of its notice[12]. When the Bureau is not in a position to comply with the time limit referred to above, it shall periodically so inform the administrations, giving the reasons therefor. (WRC-12)

11.29 The Bureau shall not postpone the formulation of a finding on a complete notice unless it lacks sufficient data to reach a conclusion thereon. Moreover, the Bureau shall not act upon any notice having a technical bearing on an earlier notice which is still under consideration by the Bureau until it has reached a finding with respect to the earlier notice.

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[12] **11.28.1** In case of satellite networks or systems not subject to the coordination procedure under Section II of Article **9**, an administration believing that unacceptable interference may be caused to its existing or planned satellite networks or systems by submitted modifications to the characteristics initially published under No. **9.2B** may provide its comments to the notifying administration. Both administrations shall thereafter cooperate to resolve any difficulties. (WRC-12)

11.30 Each notice shall be examined:

11.31 *a)* with respect to its conformity with the Table of Frequency Allocations[13] and the other provisions[14] of these Regulations, except those relating to conformity with the procedures for obtaining coordination or the probability of harmful interference, or those relating to conformity with a plan, as appropriate, which are the subject of the following sub-paragraphs;[15]

11.32 *b)* with respect to its conformity with the procedures relating to coordination with other administrations applicable to the radiocommunication service and the frequency band concerned; or

11.32A *c)* with respect to the probability of harmful interference that may be caused to or by assignments recorded with a favourable finding under Nos. 11.36 and 11.37 or 11.38, or recorded in application of No. 11.41, or published under Nos. 9.38 or 9.58 but not yet notified, as appropriate, for those cases for which the notifying administration states that the procedure for coordination under Nos. 9.7, 9.7A, 9.7B, 9.11, 9.12, 9.12A, 9.13 or 9.14, could not be successfully completed (see also No. 9.65);[16, 17] or (WRC-15)

11.33 *d)* with respect to the probability of harmful interference that may be caused to or by other assignments recorded with a favourable finding in application of Nos. **11.36** and **11.37** or **11.38** or in application of No. **11.41**, as appropriate, for those cases for which the notifying administration states that the procedure for coordination or prior agreement under Nos. **9.15**[18], **9.16**[18] **9.17**[18] **9.17A** or **9.18**[18] could not be successfully completed (see also No. **9.65**);[19] or (WRC-2000)

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[13] **11.31.1** Conformity with the Table of Frequency Allocations implies the successful application of No. 9.21, when necessary. However, the recording of the assignment with respect to those objecting administration(s) whose agreement(s) have not been obtained will be with a favourable finding, subject to the condition that the assignment in question shall not cause harmful interference to nor claim protection from the service(s) of the objecting administration(s) from which the agreement was sought. With respect to the administration(s) which have not objected under No. 9.21, the recording of the assignment shall also be made with a favourable finding. (WRC-03)

[14] **11.31.2** The "other provisions" shall be identified and included in the Rules of Procedure.

[15] **11.31.3** Notices relating to radio astronomy stations are examined with respect to No. 11.31 only.

[16] **11.32A.1** The examination of such notices with respect to any other frequency assignment for which a request for coordination under Nos. 9.7, 9.7A, 9.7B, 9.12, 9.12A or 9.13, as appropriate, has been published under No. 9.38 but not yet notified shall be effected by the Bureau in the order of their publication under the same number using the most recent information available. (WRC-2000)

[17] **11.32A.2 For the application of No.** 11.32A **with respect to the procedure for coordination under No.** 9.7 **in the** frequency bands 5 725-5 850 MHz (Region 1), 5 850-6 725 MHz and 7 025-7 075 MHz (Earth-to-space) for satellite networks having a nominal orbital separation in the geostationary-satellite orbit of more than 7°, and in the frequency bands 10.95-11.2 GHz, 11.45-11.7 GHz, 11.7-12.2 GHz (Region 2), 12.2-12.5 GHz (Region 3), 12.5-12.7 GHz (Regions 1 and 3) and 12.7-12.75 GHz (space-to-Earth) and 13.75-14.5 GHz (Earth-to-space) for satellite networks having a nominal orbital separation in the geostationary-satellite orbit of more than 6°, Resolution **762 (WRC-15)** shall apply. For other cases, the methodology shall be identified and included in the Rules of Procedure, if so required. (WRC-15)

[18] **11.33.1** When typical earth stations are involved, administrations are required to furnish the necessary information to enable the Bureau to effect the examination.

[19] **11.33.2** The examination under No. 11.33 shall also take into account assignments for terrestrial services which are in use or which are to be brought into use within the next three years and have been communicated to the Bureau as a result of continuing disagreement in coordination.

11.34 *e)* where appropriate, with respect to its conformity with a world or regional allotment or assignment plan and the associated provisions.

11.35 In cases where the Bureau is not in a position to conduct the examination under No. **11.32A** or **11.33**, the Bureau shall immediately inform the notifying administration, which may then resubmit its notice under No. **11.41**, under the assumption that the finding under No. **11.32A** or **11.33** is unfavourable. (WRC-2000)

11.36 When the examination with respect to No. **11.31** leads to a favourable finding, the assignment shall be recorded in the Master Register or examined further with respect to Nos. **11.32** to **11.34**, as appropriate. When the finding with respect to No. **11.31** is unfavourable, the assignment shall be recorded in the Master Register for information purposes and subject to application of No. **8.5**, only if the administration undertakes that it will be operated in accordance with No. **4.4**; otherwise the notice shall be returned with an indication of the appropriate action.

11.37 When the examination with respect to No. **11.32** leads to a favourable finding, the assignment shall be recorded in the Master Register indicating the administrations with which the coordination procedure has been completed[20, 21]. When the finding is unfavourable, the notice shall be returned to the notifying administration, with an indication of the appropriate action, if Nos. **11.32A** or **11.33** do not apply. (WRC-12)

11.38 When the examination with respect to Nos. **11.32A** or **11.33** leads to a favourable finding, the assignment shall be recorded in the Master Register indicating the names of the administrations with which coordination was completed and those with which it was not completed but in respect of which the finding was favourable. When the finding is unfavourable, the notice shall be returned with an indication of the appropriate action.

11.39 When the examination with respect to No. **11.34** leads to a favourable finding, the assignment shall be recorded in the Master Register. When the finding is unfavourable, the notice shall be returned to the notifying administration, with an indication of the appropriate action. However, notices under Appendices **25**, **26** or **27** which are in accordance with the technical principles of the relevant appendix but not with the associated allotment plan shall be treated as follows: (WRC-03)

11.39A In the case of a notice in conformity with the technical principles of Appendix **27**, but not in conformity with the Allotment Plan, the Bureau shall examine whether the protection specified in Appendix **27** is afforded to the allotments in the Plan and to assignments already recorded in the Master Register with a favourable finding.

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[20] **11.37.1** When the agreement of the administrations affected has been obtained only for a specified period, the Bureau shall be notified accordingly and the frequency assignment shall be recorded in the Master Register with a note indicating that the frequency assignment is valid only for the period specified. The notifying administration using the frequency assignment over a specified period shall not subsequently use this circumstance to justify continued use of the frequency beyond the period specified if it does not obtain the agreement of the administration(s) concerned.

[21] **11.37.2** When a frequency assignment to a space station in the broadcasting-satellite service in a non-planned band other than the frequency band 21.4-22 GHz is recorded in the Master Register, a note shall be entered in the remarks column indicating that such recording does not prejudge in any way the decisions to be included in the agreements and associated plans referred to in Resolution **507**. (WRC-12)

11.39B When the examination under No. **11.39A** leads to a favourable finding, the assignment shall be recorded in the Master Register. When the finding is unfavourable, the assignment shall be recorded in the Master Register with a symbol indicating that it shall cause no harmful interference to any frequency assignment which is either in conformity with the Allotment Plan or recorded in the Master Register with a favourable finding with respect to No. **11.39A**.

11.39C A notice in conformity with the technical principles of Appendix **26**, but not in conformity with the Allotment Plan, shall be examined with respect to the allotments in Part III of Appendix **26**.

11.39D When the examination under No. **11.39C** leads to a favourable finding, the assignment shall be recorded in the Master Register. When the finding is unfavourable, the assignment shall be recorded in the Master Register with a symbol indicating that it shall cause no harmful interference to any frequency assignment which is either in conformity with the Allotment Plan or recorded in the Master Register with a favourable finding with respect to No. **11.39C**.

11.39E In the case of a notice not in conformity with the Allotment Plan of Appendix **25**, the assignment may be recorded provisionally in the Master Register on the condition that the administration has initiated the procedure of Appendix **25** in accordance with § **25**/1.23 of Section I of Appendix **25**.

11.39F A notice which is not in conformity with the technical principles of Appendices **25**, **26** or **27**, as applicable, shall be returned to the notifying administration, unless the administration undertakes that it will be operated in accordance with No. **4.4**; in such a case the assignment shall be recorded in the Master Register for information purposes and subject to application of No. **8.5**. (WRC-03)

11.40 Not used.

11.41 After a notice is returned under No. **11.38**, should the notifying administration resubmit the notice[22] and insist upon its reconsideration, the Bureau shall enter the assignment in the Master Register with an indication of those administrations whose assignments were the basis of the unfavourable finding (see also No. **11.42** below). (WRC-12)

11.41A Should the assignments that were the basis of the unfavourable finding under Nos. **11.32A** or **11.33** not be brought into use within the period specified in Nos. **11.24**, **11.25** or **11.44**, as appropriate, then the finding of the assignments resubmitted under No. **11.41** shall be reviewed accordingly.

11.41B Should the coordination procedure specified in No. **11.32** be completed with an administration whose assignments were the basis for the recording made under No. **11.41**, then, based on the updated information sent by the notifying administration, the relevant remarks or indications relating to assignments for which an unfavourable finding led to their recording under No. **11.41** shall be removed. (WRC-12)

11.41.1 (SUP - WRC-12)

[22] **11.41.2** When submitting notices in application of No. **11.41**, the notifying administration shall indicate to the Bureau that efforts have been made to effect coordination with those administrations whose assignments were the basis of the unfavourable findings under No. **11.38**, without success. (WRC-12)

11.42 Should harmful interference actually be caused by an assignment recorded under No. **11.41** to any recorded assignment which was the basis of the unfavourable finding, the administration responsible for the station using the frequency assignment recorded under No. **11.41** shall, upon receipt of a report providing the particulars relating to the harmful interference[23], immediately eliminate this harmful interference. (WRC-12)

11.42A In applying No. **11.42** with respect to satellite networks, administrations involved shall cooperate in the elimination of harmful interference and may request the assistance of the Bureau, and shall exchange relevant technical and operational information required to resolve the issue. Should any administration involved in the matter inform the Bureau that all efforts to resolve the harmful interference have failed, the Bureau shall immediately inform other involved administrations and prepare a report, together with all necessary supporting documents (including comments from the administrations involved), for the next meeting of the Board for its consideration and any required action (including the possible cancellation of the assignment recorded under No. **11.41**), as appropriate. The Bureau shall thereafter implement the decision of the Board and inform the administrations concerned. (WRC-12)

11.43 In every case when a new assignment is recorded in the Master Register it shall, in accordance with the provisions of Article **8** of this Chapter, include an indication of the finding reflecting the status of the assignment. This information shall also be published in the BR IFIC.

11.43A A notice of a change in the characteristics of an assignment already recorded, as specified in Appendix **4**, shall be examined by the Bureau under Nos. **11.31** to **11.34**, as appropriate. Any change to the characteristics of an assignment that has been recorded and confirmed as having been brought into use shall be brought into use within five years from the date of the notification of the modification. Any change to the characteristics of an assignment that has been recorded but not yet brought into use shall be brought into use within the period provided for in No. **11.44**. (WRC-07)

11.43B In the case of a change in the characteristics of an assignment which is in conformity with No. **11.31**, should the Bureau reach a favourable finding with respect to Nos. **11.32** to **11.34**, as appropriate, or find that the changes do not increase the probability of harmful interference to assignments already recorded, the amended assignment shall retain the original date of entry in the Master Register. The date of receipt by the Bureau of the notice relating to the change shall be entered in the Master Register.

11.43C Where the notifying administration resubmits the notice and the Bureau finds that the coordination procedures specified in No. **11.32** have been successfully completed with all administrations whose space or terrestrial radiocommunication stations may be affected, the assignment shall be recorded in the Master Register. The date of receipt by the Bureau of the original notice shall be entered in the appropriate column of the Master Register. The date of receipt by the Bureau of the resubmitted notice shall be entered in the "Remarks" column.

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[23] **11.42.1** When providing the particulars relating to the harmful interference under No. **11.42**, administrations involved shall use, to the maximum extent possible, the format prescribed in Appendix **10** of the Radio Regulations. (WRC-12)

11.43D Where the notifying administration resubmits the notice with a request that the Bureau effect the required coordination under Nos. **9.7** to **9.19**, the Bureau shall take the necessary action in accordance with the relevant provisions of Articles **9** and **11**, as appropriate. However, in any subsequent recording of the assignment, the date of receipt by the Bureau of the resubmitted notice shall be entered in the "Remarks" column.

11.44 The notified date[24, 25, 26] of bringing into use of any frequency assignment to a space station of a satellite network shall be not later than seven years following the date of receipt by the Bureau of the relevant complete information under No. **9.1** or **9.2** in the case of satellite networks or systems not subject to Section II of Article **9** or under No. **9.1A** in the case of satellite networks or systems subject to Section II of Article **9**. Any frequency assignment not brought into use within the required period shall be cancelled by the Bureau after having informed the administration at least three months before the expiry of this period. (WRC-15)

11.44A A notice not conforming to No. **11.44** shall be returned to the notifying administration with a recommendation to restart the advance publication procedure.

11.44B A frequency assignment to a space station in the geostationary-satellite orbit shall be considered as having been brought into use when a space station in the geostationary-satellite orbit with the capability of transmitting or receiving that frequency assignment has been deployed and maintained at the notified orbital position for a continuous period of 90 days. The notifying administration shall so inform the Bureau within 30 days from the end of the 90-day period[26, 27]. On receipt of the information sent under this provision, the Bureau shall make that information available on the ITU website as soon as possible and shall publish it in the BR IFIC. Resolution **40 (WRC-15)** shall apply. (WRC-15)

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[24] **11.44.1** In the case of space station frequency assignments that are brought into use prior to the completion of the coordination process, and for which the Resolution **49 (Rev.WRC-15)** or Resolution **552 (Rev.WRC-15)** data, as appropriate, have been submitted to the Bureau, the assignment shall continue to be taken into consideration for a maximum period of seven years from the date of receipt of the relevant information under No. 9.1A. If the first notice for recording of the assignments in question under No. 11.15 related to No. 9.1 or No. 9.1A has not been received by the Bureau by the end of this seven-year period, the assignments shall be cancelled by the Bureau after having informed the notifying administration of its pending actions six months in advance. (WRC-15)

[25] **11.44.2** The notified date of bringing into use of a frequency assignment to a space station in the geostationary-satellite orbit shall be the date of the commencement of the ninety-day period defined in No. **11.44B**. (WRC-12)

[26] **11.44.3** and **11.44B.1** Upon receipt of this information and whenever it appears from reliable information available that a notified assignment has not been brought into use in accordance with No. 11.44 and/or No. 11.44B, as the case may be, the consultation procedures and subsequent applicable course of action prescribed in No. 13.6 shall apply, as appropriate. (WRC-15)

[27] **11.44B.2** A frequency assignment to a space station in the geostationary-satellite orbit with a notified date of bringing into use more than 120 days prior to the date of receipt of the notification information shall also be considered as having been brought into use if the notifying administration confirms, when submitting the notification information for this assignment, that a space station in the geostationary-satellite orbit with the capability of transmitting or receiving that frequency assignment has been deployed and maintained for a continuous period of time from the notified date of bringing into use until the date of receipt of the notification information for this frequency assignment. (WRC-15)

11.44C (SUP - WRC-03)

11.44D (SUP - WRC-03)

11.44E (SUP - WRC-03)

11.44F (SUP - WRC-03)

11.44G (SUP - WRC-03)

11.44H (SUP - WRC-03)

11.44I (SUP - WRC-03)

11.45 The notified date of bringing into use of an assignment to a terrestrial station will be extended at the request of the notifying administration by not more than six months.

11.46 In applying the provisions of this Article, any resubmitted notice which is received by the Bureau more than six months after the date on which the original notice was returned by the Bureau shall be considered to be a new notification with a new date of receipt. For frequency assignments to a space station, should the new date of receipt of such a notice not comply with the period specified in No. **11.44.1** or No. **11.43A**, as appropriate, the notice shall be returned to the notifying administration in the case of No. **11.44.1**, and the notice shall be examined as a new notice of a change in the characteristics of an assignment already recorded with a new date of receipt in the case of No. **11.43A**. (WRC-07)

11.47 All frequency assignments notified in advance of their being brought into use shall be entered provisionally in the Master Register. Any frequency assignment to a space station provisionally recorded under this provision shall be brought into use no later than the end of the period provided under No. **11.44**. Any other frequency assignment provisionally recorded under this provision shall be brought into use by the date specified in the notice, or by the end of the extension period granted under No. **11.45**, as the case may be. Unless the Bureau has been informed by the notifying administration of the bringing into use of the assignment, it shall, no later than fifteen days before either the notified date of bringing into use, in the case of an earth station, or the end of the regulatory period established under No. **11.44** or No. **11.45**, as appropriate, send a reminder requesting confirmation that the assignment has been brought into use within that regulatory period. If the Bureau does not receive that confirmation within thirty days following the notified date of bringing into use, in the case of an earth station, or the period provided under No. **11.44** or No. **11.45**, as the case may be, it shall cancel the entry in the Master Register. The Bureau shall, however, inform the administration concerned before taking such action. (WRC-07)

11.48 If, after the expiry of the period of seven years from the date of receipt of the relevant complete information referred to in No. 9.1 or 9.2 in the case of satellite networks or systems not subject to Section II of Article 9 or in No. 9.1A in the case of satellite networks or systems subject to Section II of Article 9, the administration responsible for the satellite network has not brought the frequency assignments to stations of the network into use, or has not submitted the first notice for recording of the frequency assignments under No. 11.15, or, where required, has not provided the due diligence information pursuant to Resolution **49 (Rev.WRC-15)** or Resolution **552 (Rev.WRC-15)**, as appropriate, the corresponding information published under Nos. 9.1A, 9.2B and 9.38, as appropriate, shall be cancelled, but only after the administration concerned has been informed at least six months before the expiry date referred to in Nos. 11.44 **and** 11.44.1 **and, where required, § 10 of Annex 1 of Resolution 49 (Rev.WRC-15)**. (WRC-15)

11.49 Wherever the use of a recorded frequency assignment to a space station is suspended for a period exceeding six months, the notifying administration shall inform the Bureau of the date on which such use was suspended. When the recorded assignment is brought back into use, the notifying administration shall, subject to the provisions of No. **11.49.1** when applicable, so inform the Bureau, as soon as possible. On receipt of the information sent under this provision, the Bureau shall make that information available as soon as possible on the ITU website and shall publish it in the BR IFIC. The date on which the recorded assignment is brought back into use[28] shall be not later than three years from the date on which the use of the frequency assignment was suspended, provided that the notifying administration informs the Bureau of the suspension within six months from the date on which the use was suspended. If the notifying administration informs the Bureau of the suspension more than six months after the date on which the use of the frequency assignment was suspended, this three-year time period shall be reduced. In this case, the amount by which the three-year period shall be reduced shall be equal to the amount of time that has elapsed between the end of the six-month period and the date that the Bureau is informed of the suspension. If the notifying administration informs the Bureau of the suspension more than 21 months after the date on which the use of the frequency assignment was suspended, the frequency assignment shall be cancelled. (WRC-15)

11.50 The Bureau shall review periodically the Master Register with the aim of maintaining or improving its accuracy, with particular emphasis on the review of the findings so as to adjust them to the changing allocation situation after each conference. (WRC-03)

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[28] **11.49.1** The date of bringing back into use of a frequency assignment to a space station in the geostationary-satellite orbit shall be the date of the commencement of the 90-day period defined below. A frequency assignment to a space station in the geostationary-satellite orbit shall be considered as having been brought back into use when a space station in the geostationary-satellite orbit with the capability of transmitting or receiving that frequency assignment has been deployed and maintained at the notified orbital position for a continuous period of 90 days. The notifying administration shall so inform the Bureau within 30 days from the end of the 90-day period. Resolution **40 (WRC-15)** shall apply. (WRC-15)

ARTICLE 14

Procedure for the review of a finding or other decision of the Bureau

14.1 Any administration may request a review of a finding, a review of the results of a special study under these Regulations or under a regional agreement and plan, or a review of any other decision of the Bureau. The review of a finding may also be undertaken on the initiative of the Bureau itself when it considers this is justified.

14.2 For this purpose, the administration concerned shall submit a request for a review to the Bureau; it shall also cite the relevant provisions of the Radio Regulations and other references and shall state the action it seeks.

14.3 The Bureau shall promptly acknowledge receipt of the request and shall consider the matter forthwith. Thereafter, every effort shall be made with the administration concerned to resolve the matter without adversely affecting the interests of other administrations.

14.4 If the outcome of the review successfully resolves the matter with the requesting administration without adversely affecting the interests of other administrations, the Bureau shall publish an outline of the review, the arguments, the settlement and any implications affecting other administrations for the information of all Members of the Union. If this review results in a modification to a finding previously formulated by the Bureau, the Bureau shall reapply the relevant steps of the procedure under which the previous finding had been formulated, including, if appropriate, removal of the corresponding entries from the Master Register or any consequential effect on notices subsequently received by the Bureau.

14.5 If the outcome of the review does not successfully resolve the matter, or if it would adversely affect the interests of other administrations, the Bureau shall prepare a report and send it in advance to the administration which requested the review and to any others concerned in order to enable them, if they so desire, to address the Board. The Bureau shall then send the report with all supporting documentation to the Board.

14.6 The decision of the Board on the review, to be taken in accordance with the Convention, shall be regarded as final in so far as the Bureau and the Board are concerned. That decision, together with the supporting information, shall be published as under No. **14.4**. If the review results in a modification to a finding previously formulated by the Bureau, the Bureau shall re-apply the relevant steps of the procedure under which the previous finding had been formulated, including, if appropriate, removal of the corresponding entries from the Master Register or any consequential effect on notices subsequently received by the Bureau. However, if the administration which requested the review disagrees with the Board's decision it may raise the matter at a world radiocommunication conference. (WRC-2000)

14.7 The Bureau shall then initiate all other necessary action decided by the Board.

14.8 Following resolution of the matter by a decision at a world radiocommunication conference, the Bureau shall promptly take the consequential actions, including a request to the Board for reviewing all relevant findings, if necessary.

ARTICLE 18

Licences

18.1 § 1 1) No transmitting station may be established or operated by a private person or by any enterprise without a licence issued in an appropriate form and in conformity with the provisions of these Regulations by or on behalf of the government of the country to which the station in question is subject (however, see Nos. **18.2**, **18.8** and **18.11**).

18.2 2) However, the government of a country may conclude with the government of one or more neighbouring countries a special agreement concerning one or several stations of its broadcasting service or of its land mobile services, operating on frequencies above 41 MHz, situated in the territory of a neighbouring country and intended to improve national coverage. This agreement, which shall be compatible with the provisions of the present Regulations as well as of those regional agreements to which the countries concerned are signatories, may allow exceptions to the provisions of No. **18.1** and shall be communicated to the Secretary-General in order that it may be brought to the notice of administrations for their information.

18.3 3) Mobile stations which are registered in a territory or group of territories which does not have full responsibility for its international relations may be considered, in so far as the issue of licences is concerned, as subject to the authority of that territory or group of territories.

18.4 § 2 The holder of a licence is required to preserve the secrecy of telecommunications, as provided in the relevant provisions of the Constitution and the Convention. Moreover, the licence shall mention, specifically or by reference, that if the station includes a receiver, the interception of radiocommunication correspondence, other than that which the station is authorized to receive, is forbidden, and that in cases where such correspondence is involuntarily received, it shall not be reproduced, nor communicated to third parties, nor used for any purpose, and even its existence shall not be disclosed.

18.5 § 3 To facilitate the verification of licences issued to mobile stations and mobile earth stations, a translation of the text in one of the working languages of the Union shall be added, when necessary, to the text written in the national language.

18.6 § 4 1) The government which issues a licence to a mobile station or a mobile earth station shall indicate therein in clear form the particulars of the station, including its name, call sign and, where appropriate, the public correspondence category, as well as the general characteristics of the installation.

18.7 2) For land mobile stations, including stations consisting only of one or more receivers, a clause shall be included in the licence, specifically or by reference, under which the operation of these stations shall be forbidden in countries other than the country in which the licence is issued, except as may be provided by special agreement between the governments of the countries concerned.

18.8 § 5 1) In the case of a new registration of a ship or aircraft in circumstances where delay is likely to occur in the issue of a licence by the country in which it is to be registered, the administration of the country from which the mobile station or mobile earth station wishes to make its voyage or flight may, at the request of the operating company, issue a certificate to the effect that the station complies with these Regulations. This certificate, drawn up in a form determined by the issuing administration, shall give the particulars mentioned in No. **18.6** and shall be valid only for the duration of the voyage or flight to the country in which the registration of the ship or aircraft will be effected, or for a period of three months, whichever is less.

18.9 2) The administration issuing the certificate shall inform the administration responsible for issuing the licence of the action taken.

18.10 3) The holder of the certificate shall comply with the provisions of these Regulations applicable to licence holders.

18.11 § 6 In the case of hire, lease or interchange of aircraft, the administration having authority over the aircraft operator receiving an aircraft under such an arrangement may, by agreement with the administration of the country in which the aircraft is registered, issue a licence in conformity with that specified in No. **18.6** as a temporary substitute for the original licence.